

Pawan Kumar vs State Of Haryana on 19 September, 2023

Author: Pankaj Jain

Bench: Pankaj Jain

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CRM-M No.27240 of 2023 (O&M) 1 2023:PHHC:123310

209 IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CRM-M No.27240 of 2023 (O&M)
Date of decision : 19.09.2023

Pawan Kumar eee Petitioner
versus

StateofHaryana ee Respondent

CORAM : HON'BLE MR.JUSTICE PANKAJ JAIN

Kee

Present :- Mr. Pawan Attri, Advocate
for the petitioner.

Mr. Ramesh Kumar Ambavta, AAG, Haryana.

Mr. Sudhir Rana, Advocate
for the complainant.

Kee

PANKAJ JAIN, J. (ORAL)

1 The petitioner has prayed for grant of pre-arrest bail in FIR No.69 dated 27.03.2023 registered under Sections 406/420/120-B IPC and Section 24 of Immigration Act, at Police Station Nigdhu, District Karnal, Haryana.

2 Notice of motion was issued on 29.05.2023 on the representation made on behalf of petitioner that he was ready and willing to settle the dispute with the complainant. However, as per counsel representing the petitioner, the petitioner is no more willing to settle the 3 As per the allegations levelled in the FIR, the allegations are as "Sir I Sawan Kumar S/o Mahinder Singh resident of village Sakra Distt CRM-M No.27240 of 2023 (O&M) 2 2023:PHHC:123310 Kaithal. That in January 2022 I met accused Pawan Kumar during a function at Ror Dharamshala where he introduced himself as a foreign shipping agent and also about all the boys who have gone out of my area Started talking

and told me that if you are unemployed, I will send you to America, where you will earn five to six lakh rupees a month. After that the accused started talking to me on the phone and said that I will send you to America for 34 lakh rupees. In the first week of February, the accused called me from his home and ask me to come his home with five lakh rupees and introduced me to his wife Anita and his father Dharam Singh and said that all three of us work together to send abroad. Then he took five lakh rupees from me and promised to take the rest after reaching America. At that time Sanju s/o Chamela village Shamgarh, District Karnal was with me. 2. It is that on February 25, 2022, the convict sent me to Sri Lanka to be sent to America via Sri Lanka, where I stayed for a month. After that the accused sent me to Indonesia, I stayed there for about 25-26 days. During this, the accused kept talking to me on the phone and kept assuring that he would get the US visa done soon. But after that the accused told us that your work is not being done now, now you should come back to India. That on dated 07.03.2022, the accused called me to come at the shop of an agent in Taraori, named Bittu and took another Rs.8 lakhs. At that time Satpal sarpanch of my village and Sandeep s/o Ramkumar resident of village Khanoda, District Kaithal were with me. I had borrowed this Rs.8 lakh from Sarpanch because at that time I was under pressure that the money should not be wasted because the culprits had said so. That on 06.05.2022 the accused Anita and Dharam Singh dropped me at Delhi airport and put us on a flight to Azerbaijan and said that we will get your US visa there. But when the visa did not come for 20-25 days and the accused kept on delaying us, then later I came back to India on 31.5.2022. The accused kept me in a hotel in Mumbai and assured again that you go back to Indonesia, me and my wife our self bring yours from America. On this, we kept talking to the above three accused on the phone and agreed with me and said that we have sent many people to America through Indonesia earlier also. Then on 02.06.2022, I went to Indonesia at the behest of the culprits, I had also taken two and a half lakh rupees with me, which was taken by the culprit Anita and said that we will provide you dollars in Indonesia from there. I went to Indonesia and waited there in a hotel but talked to the culprits once or twice but after that the culprits kept postponing the matter and switched off their phones. When I ran out of money, I returned to India on 12.06.2022 by ordering money from my house and getting CRM-M No.27240 of 2023 (O&M) 3 2023:PHHC:123310 tickets. After that, I and my family relatives went to the house of the culprits and held a Panchayat and asked for return of about 15 lakh rupees given by them, but the culprits kept on postponing, then the convict Pawan gave a check of Rs. 8 lakh on dated 05.01.2023 and said that I will give you the rest of money by march 2023. The culprits have now flatly refused to give the money back after the check bounced and threatened to kill me. My passport and money is still in possession of the culprits. Kindly take a strict legal action against them."

4 Thus it is evident that the petitioner is alleged to have duped the complainant for sending him abroad to America illegally. He was made to fly to foreign land of Azerbaijan on the pretext that he will be handed over valid visa to America there. However, the same could not fructify and the complainant had to come back to India. Again on 02.06.2022 he was assured and sent to Indonesia and another sum of 2.5 lacs Dollars is alleged to have been taken.

5 I have heard learned counsel for the parties and have gone through the records of the case.

6 Law with respect to grant of pre-arrest bail stands settled. As per the same petitioner is required to make out a case for grant of relief under Section 438 Cr.P.C. In Gurbaksh Singh Sibbia vs. State of

Punjab, 1980(2) SCC 565, Apex Court has held that :-

"That is to say, it cannot be laid down as an inexorable rule that anticipatory bail cannot be granted unless the proposed accusation appears to be actuated by mala fides; and equally, that anticipatory bail must be granted if there is no fear that the applicant will abscond. There are several other considerations, too numerous to enumerate, the combined effect of which must weigh with the court while granting or rejecting anticipatory bail. The nature and seriousness of the proposed charges, the context of the events likely to lead to the making of the charges, a reasonable possibility of the applicant's presence not being secured at the trial, a reasonable apprehension that witnesses will be CRM-M No.27240 of 2023 (O&M) 4 2023:PHHC:123310 tampered with and "the larger interests of the public or the State" are some of the considerations which the court has to keep in mind while deciding an application for anticipatory bail...."

7 Likewise while reiterating the law laid down in Gurbaksh Singh Sibbia's case (supra) Apex Court in Sushila Aggarwal and others Vs. State (NCT of Delhi) and another, 2020 (5) SCC 1 held that :-

"(4) Courts ought to be generally guided by considerations such as the nature and gravity of the offences, the role attributed to the applicant, and the facts of the case, while considering whether to grant anticipatory bail, or refuse it."

8 In view of the aforesaid allegations levelled against the petitioner which are indeed serious in nature, this Court does not find any reason to grant extra ordinary relief of anticipatory bail to the petitioner. Consequently, the same is dismissed.

9 Needless to say nothing recorded hereinabove should be construed as expression on merits of the case.

(PANKAJ JAIN) JUDGE 19.09.2023 Pooja sharma-I Whether speaking/reasoned Yes Whether Reportable : No